Questionnaire: William Adams – Clennett Hire

MN-85063

Deadline to respond: Friday 20 November 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing William Adams Pty Ltd's (**William Adams**) proposed acquisition of 65% of the share capital of Clennett Hire Pty Ltd (**Clennett Hire**) (the **Acquisition**), with the balance of the share capital to be retained by entities controlled by Mr Will Clennett.

Clennett Hire is a general and access equipment hire business with operations in Tasmania, Victoria and South Australia. It primarily supplies non-specialised access equipment (such as scissor lifts and boom lifts), alongside a range of general equipment (including compaction, earthmoving, material handling equipment such as forklifts, power equipment, lighting equipment and pumps), as well as site services equipment (generators, portable toilets, site buildings, temporary lighting structures, traffic management equipment) for use in residential, commercial and civil construction projects. Clennett Hire is majority owned and controlled by Clennett Group Pty Ltd, which in turn is controlled by the founder and CEO, Mr Will Clennett.

William Adams is an authorised Caterpillar dealer that sells and services new and used Caterpillar equipment in Victoria and Tasmania. William Adams also supplies equipment for rent consisting of specialised, heavy-duty earthmoving and compaction equipment (such as heavy excavators, wheel loaders, articulated trucks, graders and skid steer loaders) for use in large-scale construction projects and mining operations. Its rental fleet is comprised predominantly of Caterpillar equipment, and items of equipment are typically rented out to large customers for large scale projects.

The majority (96%) of shares in William Adams are held by Elphinstone Group (Aust) Pty Ltd (**EGA**). Another entity held by EGA is United Equipment Pty Ltd, which trades as United Forklift and Access Solutions (**United Forklift**). United Forklift sells and services new and used forklift and access equipment (such as scissor lifts, boom lifts and cherry pickers) nationally It also offers such equipment for hire.

For further information about the ACCC's assessment of the Acquisition, see the ACCC's Acquisitions Register.

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **Friday 20 November 2026** via email to mergers@accc.gov.au with the title *Submission re: William Adams – Clennett*

Hire. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with the title *Request for call re: William Adams – Clennett Hire*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's general confidentiality claims template). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

1. Outline any concerns regarding the impact of the Acquisition on competition, including if William Adams and Clennett Hire are close competitors and there are not many alternatives, or if one is a major supplier to competitors of the other.

2. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition.

3. Provide a brief description of your business or organisation, including any commercial relationships with William Adams and/or Clennett Hire.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties

that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's confidentiality quick guide**.**